IN THE DISTRICT COURT HELD AT ANLOGA IN THE VOLTA REGION ON WEDNESDAY THE 9TH DAY OF APRIL, 2025. BEFORE HER WORSHIP REJOICE ASEYE GADAGOE, DISTRICT MAGISTRATE.

CASE NO.: CC/41/2024.

THE REPUBLIC
VRS

1. TORGBUI EGLI APEVINYA III
2. TORGBI KORWU LAVOE IV
3. AKPLORFUDZI YOUTH CLUB
4. AKPLORFUDZI DEVELOPMENT ASSOCIATION.

JUDGMENT:

INTRODUCTION:

This case is a sequel (part two) to an earlier application filed last year on **28th March, 2024;** by THOMAS YAW AGBANYO, Superintendent of Police, ANLOGA DISTRICT; under the heading:

"IN THE MATTER OF APPLICATION FOR INTERIM INJUNCTION ON CELEBRATION OF EASTER IN AKPLOFUDZI: SECTION 1 (6) & (7) OF THE PUBLIC ORDER ACT OF 1994 (ACT 491)".

That application was supported by a restraining order dated **18/03/2024,** already in force from the ANLO TRADITIONAL COUNCIL.

The said application was moved in terms of the motion paper, the affidavit and annexures attached.

The respondents at the time were just A1 and A2. The respective submissions of their representatives were also heard by the Court.

Although the **2024** application was also for an interim injunction, after considering all available processes filed, the Honourable Court deemed it more appropriate, to grant an interlocutory injunction order, with the hope that the chieftaincy dispute that triggered the application, could be expeditiously determined.

INTERLOCUTORY INJUNCTION ORDER:

IN THE DISTRICT COURT
ANLOGA VOLTA REGION
AD 2024

SUIT NO.CC41/2024

THE REPUBLIC

VRS.

1. TORGBI EGLI APEVINYA
2. TORGBI KORWU LAVOE == RESPONDENTS

AN **ORDER FOR INTELOCUTORY INJUNCTION**

MAGISTRATE
DISTRICT MAGISTRATE COURT
ANLOGA

HER WORSHIP REJOICE ASEYE GADAGOE,
DISTRICT MAGISTRATE

UPON READING the Affidavit of **SUPERINTENDENT THOMAS YAW AGBANYO**, of Ghana Police Service stationed at Anloga, filed on the 28th day of March, 2024 in support of Motion on Notice for **AN INTERLOCUTORY INJUNCTION ORDER**

AND UPON HEARING C/ INSPECTOR STEPHEN ATIDZON for prosecution

IT IS HEREBY ORDERED that **AN INTERLOCUTORY INJUNCTION** be granted restraining **TORGBI EGLI APEVINYA III** represented by **SECRETARY ALEX LUMOR** and **TORGBI KORWU LAVOE IV** represented by **GODSON TETTEH DORDOR** herein by themself, their assigns, privies, associate workmen and or labours or any other person or persons connected to them to cease forthwith, from Celebration of EASTER in AKPLORFUDZI TOWNSHIP.

GIVEN UNDER MY HAND AND THE SEAL OF THE DISTRICT COURT, ANLOGA ON THIS 28TH DAY OF MARCH, 2024

SAMUEL KUDJOE HANYABUI
REGISTRAR

The unfortunate effect of the grant of the first application was that, the people of AKPLORFUDZI were prevented from celebrating Easter in **2024**, **with its reported rippling effects on the Youth and development projects in the Town.**

THE INSTANT APPLICATION:

On **4th April, 2025;** the Anloga Police filed another application under a similar heading which has been reproduced below:

"IN THE MATTER OF APPLICATION FOR INTERIM INJUNCTION ON CELEBRATION OF EASTER IN AKPLORFUDZI: SECTION 1 (6) & (7) OF THE PUBLIC ORDER ACT OF 1994 (ACT 491)".

On the face of the record, the instant application appears to be on all fours with the **2024** one, except that the Accused persons had increased from two **(2)** to four **(4).**

The attached affidavit was deposed to by BENJAMIN SAMANI, Superintendent of Police and current Commander in-charge of ANLOGA DISTRICT.

CHIEF INSPECTOR RANSFORD KWATEI, the Prosecutor for the Republic; moved the application today, **9th April, 2025.**

The highlights of his submissions are as follows:

- *That, **A1** and **A2** who are factions in a chieftaincy dispute, had planned to celebrate Easter in Akplorfudzi this year;*

- *That, Anloga Police had received various Letters from the Accused persons and a rebuttal from the ANLO TRADITIONAL COUNCIL.*

- *After reviewing all the positions canvassed in the respective Letters, the Police are of the considered view that if the Parties are allowed to celebrate Easter in AKPLORFUDZI this year, **"a breach of the peace is likely to be occasioned leading to possible bloodshed;** and,*

- *That, Police are currently over-stretched and burdened with activities marking the Easter festivities and will not have the numbers to immediately restore order should any violence erupt in the area.*

The four **(4)** representatives of the Accused persons were invited to address the Honourable Court in reaction to the points raised by the Prosecutor.

The various responses have been reproduced below albeit summarized.

1) **MR. ALEX LUMOR, REGENT TO TOGBI EGLI APEVINYA III:**

"The Easter at Akplorfudzi is not organized by TOGBI EGLI APEVINYA III. There is a committee responsible for the planning of the Easter festival and Togbi Egli Apevinya III has not indicated to anyone he would be celebrating Easter at Akplorfudzi this year.

Togbi currently resides at SHAMA junction in the Western Region and has not also written to any authority for permission to celebrate the Easter at Akplorfudzi.

Togbi disassociates himself from any planning and celebration of Easter at Akplorfudzi and will not be present for the celebration".

2) **MR. GODSON TETTEH-GORDOR, REPRESENTATIVE OF TOGBI LAVOE IV:**

"My side of the youth suggested that if the banner projected has the image of TOGBI EGLI APEVINYA III, they will cause commotion.

One of those threatening to cause the "hunyahunya" is their leader, SAVIOUR GAKPETOR. The youth on my side are not directly involved in the planning of the Easter celebration this year.

I want to assure everyone that I am not fomenting trouble for the youth. I want the Court to assure them for me (his prayer was granted).

I also assure the Honourable Court that no chaos shall be registered in Akplorfudzi during the 2025 Easter Celebration".

3) MR. RICHARD GORDOR, REPRESENTATIVE OF THE YOUTH:

"The Easter celebration in Akplorfudzi is planned by the Akplorfudzi Development Association Planning Committee and the Youth Group.

*No chief(s) is/are involved in the Easter planning committee. I chaired the Easter celebration with my cousin Godson Tetteh-Gordor who was the financial secretary in **2002**.*

*During that period, no chief was engaged in the planning and celebration of the Easter except being recognized as the **traditional ceremonial heads.***

*In **2022,** when the chieftaincy issue started, Easter was celebrated and none of the things they are mentioning happened.*

*Again in **2023,** the ANLO TRADITIONAL COUNCIL told the Parties involved in the chieftaincy dispute that **they cannot stop the Easter celebration** in the presence of Mr. Godson Tetteh-Gordor..*

Then in 2024, an injunction was miraculously placed on the Easter celebration at Akplorfudzi.

My Lady, it is through the Easter celebration that we raise funds for development projects. Our younger ones are at the mercy of the weather as the roof of their classroom block had been swept away since last year April.

Teaching and learning could not take place in that particular classroom block exhibited in our document. Funds raised from this Easter celebration would be used to cater for that classroom.

No funds generated goes to any Chief. The funds are used for the developmental needs of the Akplorfudiz town.

Mr. Godson Tetteh-Gordor has served as the longest ever Financial Secretary and I have chaired the youth twice whiles he served as the financial secretary. He should not be seen to be derailing our progress".

4) **CHIEF INSPECTOR GAVOR (DEVELOPMENT ASSOCIATION CHAIRMAN):**

*"Your Worship, just as Richard Gordor stated, the ANLO TRADITIONAL COUNCIL told the Parties in the chieftaincy dispute in **2023** that Easter celebration does not belong to any Chief, and they permitted us to celebrate the Easter.*

Other neighbouring villages actually copied our Easter celebration and we are rather retrogressing in ours.

We have used the development funds to build a Clinic, laid pipes for water extension, and so many other things.

Your Worship, I want to assure my brother the Prosecutor, if those that are planning chaos do not restrain from their plans, in case of any eventualities, we will assist the Police. WE PROMISE NOT TO LET THE COURT DOWN".

EVALUATION OF THE ARGUMENTS:

The Police Anloga, have once again sought an interim injunction from this Honourable Court to restrain the good people of AKPLORFUDZI from the celebrating the **2025** Easter.

The application brought last year on **28th March, 2024**; was considered and granted based on the arguments made and **the restraining order already in force** from the ANLO TRADITIONAL COUNCIL.

I humbly submit that the interlocutory injunction order of **2024** was intended to allow time for the resolution of the chieftaincy dispute between **A1** and **A2.**

That grant should not be misconstrued as having been done for purposes of setting a LEGAL PRECEDENT.

As part of the evidence, the Court found that the ***"Akplorfudzi Easter Celebration is not spearheaded by any Chief but rather the DEVELOPMENT ASSOCIATION, PLANNING COMMITTEE, UNIT COMMITTEE and the YOUTH".***

The representative of **A2**, Mr. Godson Tetteh-Gordor, also mentioned MR. SAVIOUR GAKPETOR as one of the persons likely to foment the chaos (hunyahunya) he informed the Honourable Court of.

Thankfully, the said Saviour Gakpetor is before this Court in another matter and I believe he would not conduct himself in a manner that could potentially create other difficulties for him.

It is the Court's prayer, that the matter pending before the JUDICIAL COMMITTEE OF THE ANLO TRADITIONAL COUNCIL, between **A1** and **A2** is determined on its merits and a FINAL AND BINDING OUTCOME IS SUCCESSFULLY REACHED.

It is very important because, such forward-looking and intentional Youth need encouragement. The Honourable Court seizes this opportunity to plead with the powers that be, to give the youth groups a listening ear, provide them guidance and the needed encouragement.

THE YOUTH OF AKPLORFUDZI APPEAR TO BE VERY ACTIVE AND PROGRESSIVE. THEY CANNOT, AND SHOULD NOT BE HELD TO RANSOM OWING TO OTHERS' AMBITIONS TO OCCUPY THE NOBLE OFFICE OF A CHIEF.

A1 and A2 are directly responsible for the seeming instability. They are seriously advised to comport themselves and wait on the authorities to exercise their mandate however long it would take.

Finally, CHIEF INSPECTOR DAVID GAVOR's letter dated **10th February, 2025;** and filed on **4th April, 2025**, touching on the subject matter; as well as planned activities, has been inserted below for ease of reference.

Also inserted, is a poster on other scheduled activities/programmes line-up, for the impending Easter celebration.

AKPLORFUDZI DEVELOPMENT ASSOCIATION (A.D.A)

ADDRESS: C/O POSTAL AGENT
AKPLORFUDZI ANLOGA DISTRICT

CONTACT: 0244262459

Our Ref: AKP/VOL1/25/01

Your Ref:.....

Date: 10th February, 2025.

4/04/25
11:21
DISTRICT MAGISTRATE COURT
ANLOGA

THE DISTRICT COMMANDER
GHANA POLICE SERVICE
ANLOGA DISTRICT
ANLOGA.

Dear Sir,

LETTER OF NOTIFICATION ON 2025 AKPLORFUDZI EASTER CELEBRATION.

I bring you warmest greetings from the entire natives of Akplorfudzi.

I write to notify you on the adverse harm caused by your injunction restraining the two chiefs from organizing Akplorfudzi 2024 Easter celebration as a result of the chieftaincy dispute between the two chiefs whose case is pending before the Judicial Committee of the Anlo Traditional Council for almost three years now.

Before the celebration of last year Easter, we came across a letter from the Office of the District Commander Superintendent Thomas Agbanyo, giving **Court order** restraining the chiefs not to organize 2024 Easter, as a result of inadequate security personnel in the district to cater for any conflict that may emerge as claimed by the then Commander of Police Superintendent Thomas Agbanyo.

Upon seeing the said notification, we wrote a letter to the Traditional Council and copied the office of the Commander on how Akplorfudzi Easter is celebrated; a copy of such letter is attached for your perusal.

After the Traditional Council was saved, the Council has failed to give a listening ears to our major concerns stated in the letter that, **Akplorfudzi Easter Celebration is not spearheaded by any chief but rather the Development Association, Planning Committee, Unit Committee and the Youth.**

As a result of the above, the 2024 Easter Festivity could not hold which affected the developmental projects negatively. **Currently our school building roof was devastated by a heavy storm since last year April and still remained untouched by the Government. This is affecting quality education among our wards.** We are convinced that we cannot be waiting for government to come the renovate the building for us.

We will like the state emphatically that, the Development Association together with the Youth are planning to celebrate this year **Easter without involvement of the two chiefs in question in order to raise more funds to put the school building into good shape, extend pipe borne water and other pressing developmental issues.**

We are fully ready to deploy your staff at our own expense to bring joy back to the natives.

We pray that you will consider our plights in order to bring development back to Akplorfudzi.
Thank you.
Yours Faithfully.

CHIEF INSP. DAVID GAVOR
(A.D.A CHAIRMAN) Contact: 0244262459

"Exhibit DG4"

TREGUI DEVELOPMENT UNION

IN COLLABORATION WITH

TREGUI YOUTH CLUB AND TREGUI ARMY GROUP

Presents

HOME COMING Easter Festival 2025

Host

HRH. TORGBI AKORLOR IV
DUFIA OF TREGUI

Special Guest of Honour

HON. SETRAM SANDRA EPEDOR
MCE ANLOGA MUNICIPAL ASSEMBLY

Special Guest

TORGBI KOTOKA II
ANLO YOUTH CHIEF IN HONOR.

THEME: "A DISCIPLINED YOUTH, A WELL DEVELOPED COMMUNITY. I AM AN AGENT OF CHANGE IN TREGUI".

AIM: COMPLETION OF THE ON-GOING COMPUTER LABORATORY PROJECT

DATE: 18TH - 21ST APRIL, 2025

VENUE: TREGUI COMMUNITY CENTER AND SCH. PARK

GUEST SPEAKER: LAWYER HUMPHREY HOGZARA (ESQ)

PROGRAMME OUTLINE

WEDNESDAY

- Clean up exercise - 7:00am - 11:00am

THURSDAY

- Arrival of citizens and guests
- Candle light procession on the principal streets - 7:00pm
- Special Borborbor Night - 8:00 till Mama calls

FRIDAY

- Good Friday church service - 5:30am-7:00am
- Executive meeting - 2:30pm-4:00pm
- Football game - 3:00pm-4:30pm
- Quiz competition - 7:00pm-8:30pm
- Movie night - 9:00pm-11:00pm

SATURDAY

- Health walk - 4:30am-6:00am
- Grand Durbar - 10:00am
- Final Football game - 3:00-4:30pm
- Show your dancing skills for 35 years and above: 8.00pm -11.00pm

SUNDAY

- He Arose (Efor heeee) procession - 4:00am-4:30am
- Denominational church service - 7:30am-10:00am
- Interdenominational Thanksgiving service -10:30am-12:00pm
- My culture, My heritage quiz competition (know your culture) - 7.00-9.30pm

MONDAY

- Executive meeting - 8:00-9:30am
- Picnic - 10:30am-1:00pm
- Departure - 3:00pm

DECISION OF THE COURT:

ORDER 13 RULE 1 (6) AND (7) OF THE DISTRICT COURT (CIVIL PROCEDURE) RULES, 2009 (C. I. 59); provide as follows:

"(6) An application made ex parte under sub-rule (5) may be granted if the applicant gives sufficient reason for making the application ex parte and specifies some irreparable damage or mischief which will be caused to the applicant if the applicant proceeds by giving notice to the respondent.

(7) An order made as a result of an application made ex parte under subrule (5), shall not remain in force for more than ten (10) days".

This being an **interim injunction application,** if granted, would elapse after ten **(10)** days which shall fall on **19th April, 2025**. That **19th April, 2025** incidentally, shall be the climax of the 2025 Easter celebration.

Respectfully, the Court's order shall be rendered moot as a result. It is trite knowledge that Courts generally, do not make VOID ORDERS.

Secondly, the Police did not provide any evidence of the AKPLORFUDZI YOUTH being unreasonable and blood-thirsty. On the contrary, they have shown this Court signs of being very progressive-minded, and have the welfare of their Akplorfudzi Township at heart.

As the representative of **A2** stated earlier before retracting, some of his members have planned to ***"do hunyahunya".*** One of such persons he told the Court is SAVIOUR GAKPETOR.

Pursuant to a letter dated **27th March, 2025; TORGBI LAVOE** KORWU IV **(A2**) himself, had also stated the following:

"Your Honour, the traditional council had written to us that, UNTIL THE FINAL DETERMINATION OF THE SUIT CASE WE ARE ADMONISHED TO COMPLY WITH THE DIRECTIVES".

I rely on the quote above to also admonish **A1** and **A2** to recuse themselves from the upcoming **2025** Easter Celebration in AKPLORFUDZI.

Finally, the privies, assigns of A1 and A2; as well as and whosoever has an unholy intentions against Akplorfudzi, is/are SERIOUSLY CAUTIONED TO REFRAIN FROM SUCH CONDUCT AND JOIN THE DEVELOPMENT AGENDA.

ORDERS:

1. HAVING CONSIDERED THE INTERIM INJUNCTION APPLICATION, THE OPPOSING ARGUMENTS, AND ALL PROCESSES ATTACHED; THE APPLICATION BY THE ANLOGA POLICE IS DENIED AND ACCORDINGLY DISMISSED.

2. EASTER SHALL BE CELEBRATED PEACEFULLY IN AKPLORFUDZI THIS YEAR, **2025**.

3. THE FOUR REPRESENTATIVES OF THE ACCUSED PERSONS SHALL SIGN INDIVIDUAL UNDERTAKINGS TO HAVE THEIR MEMBERS PRESERVE THE PEACE IN AKPLORFUDZI..

   THE RESPECTIVE UNDERTAKINGS SHALL BE SUBMITTED TO THE ANLOGA POLICE LATEST BY MONDAY, **14TH APRIL, 2025.**

4. THE REPRESENTATIVE OF **A2,** TORGBI LAVOE KORWU IV, MR. GODSON TETTEH-GORDOR HINTED OF CHAOS AND BLOODSHED. THE POLICE SHOULD ATTACH ALL SERIOUSNESS TO HIS STATEMENT.

5. THE OUTCOME OF THE **2025** EASTER SHALL INFORM THIS COURT'S FUTURE DECISIONS.

6. NONE OF THE GROUPS IN AKPLORFUDZI SHALL BE EXCLUDED FROM THE 2025 EASTER CELEBRATIONS.

7. **A1 AND A2 HAVE BEEN SINGLED OUT AND ARE HEREBY RESTRAINED SPECIFICALLY FROM THE 2025 EASTER CELEBRATIONS IN AKPLORFUDZI.**

SGD.
HW REJOICE ASEYE GADAGOE
DISTRICT MAGISTRATE
9/04/2025.

- **Representation:**

- DETECTIVE CHIEF INSPECTOR RANSFORD KWATEI PROSECUTED FOR THE REPUBLIC.

- LAWYER IVAN YAO AKROBOTU FOR ACCUSED PERSONS.